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HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as The Hope Program)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive, Defendants.	Case No.: STK-CV-UF-2026-0001032 **DEFENDANT HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE** Complaint Filed: February 10, 2026 Trial Date: TBD

PROPOUNDING PARTY: Plaintiff BRENDAN NGEHSI NEWANFORBI

RESPONDING PARTY: Defendant HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION

SET NO: ONE

Defendant HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION ("HOPE" or "Defendant" or "Responding Party") hereby

objects and responds to Plaintiff BRENDAN NGEHSI NEWANFORBI's ("Propounding Party") Request for Production of Documents, Set One, as follows:

PRELIMINARY STATEMENT

The following responses are made solely for the purpose of this pending action. Documents eventually produced in response to the Requests for Production and any individual request therein, are subject to admissibility, as well as to any and all other objections on any grounds that would require the exclusion of any statement therein if the information were introduced in court. All objections and grounds for such objections are expressly reserved and may be interposed at the time of any motion or trial.

These responses are based on discovery available as of the date hereof. Discovery is continuing, and these responses are accordingly subject to revision. Further discovery, independent investigation, and analysis may supply additional facts and add meaning to known facts, as well as establish entirely new factual conclusions and legal contentions, all of which may lead to additions, changes to, or variations from the information set forth herein. These responses are given without prejudice to Defendant's right to produce, respond, or rely on subsequently discovered information, facts, or documents. Defendant accordingly reserves the right to change the response herein as additional facts are ascertained, analysis is made, legal research is completed, and contentions are made. The responses contained herein are made in a good faith effort to comply with the provisions of the California Rules of Civil Procedure but are in no way deemed to prejudice Defendant with respect to further discovery, research, and analysis.

REQUEST FOR PRODUCTION NO. 1:

All written policies, procedures, manuals, handbooks, protocols, guidelines, training materials, and standard operating procedures in effect at any time during the RELEVANT PERIOD governing: (a) treatment-completion determinations for parolee participants in HOPE's SOMP; (b) phase progression (preparatory, core, maintenance, aftercare); (c) discharge planning; and (d) the relationship between treatment completion and parole-discharge status.

RESPONSE TO REQUEST FOR PRODUCTION NO. 1:

Objection. This request is vague and ambiguous as to the phrase "treatment completion" and

overbroad in scope and time. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 2:

All DOCUMENTS describing or depicting HOPE's four-phase program structure (preparatory, core, maintenance, aftercare), including diagrams, flow charts, intake materials, orientation materials, treatment contracts, and clinician training materials.

RESPONSE TO REQUEST FOR PRODUCTION NO. 2:

Objection. This request is vague and ambiguous as to the phrase "treatment contracts" and overbroad in scope and time. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

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REQUEST FOR PRODUCTION NO. 3:

All DOCUMENTS REFERRING TO any policy, practice, custom, or instruction—whether written or unwritten—under which HOPE retains parolee participants in treatment for the entire duration of parole, or under which no parolee may be deemed to have completed treatment prior to parole discharge.

RESPONSE TO REQUEST FOR PRODUCTION NO. 3:

Objection. This request is vague, unintelligible, and assumes as facts not in evidence that HOPE retains parolee participants in treatment for the entire duration of parole, or under which no parolee may be deemed to have completed treatment prior to parole discharge. This request is also objected to on the grounds that it seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. This request is also objected as it is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 4:

All California Sex Offender Management Board ("CASOMB") publications, guidelines, audits, certifications, and correspondence in YOUR possession, custody, or control during the RELEVANT PERIOD, including without limitation the CASOMB Treatment Completion Guidelines (2018) and the CASOMB Maintenance and Aftercare Guidelines (September 2024).

RESPONSE TO REQUEST FOR PRODUCTION NO. 4:

Objection. This request is vague and ambiguous as to the phrase “correspondence” and overbroad in scope and time. This request is also objected to on the grounds that it seeks information

that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the above objections, Responding Party responds as follows: Documents responsive to this request are equally available to Requesting Party via CASOMB's website: CASOMB - CA Sex Offender Management Board

REQUEST FOR PRODUCTION NO. 5:

All COMMUNICATIONS between HOPE and CASOMB during the RELEVANT PERIOD REFERRING TO HOPE's policies or practices on treatment completion, phase progression, aftercare, discharge planning, or compliance with Penal Code section 3008 or 15 C.C.R. section 3574.

RESPONSE TO REQUEST FOR PRODUCTION NO. 5:

Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrase "policies or practices." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Pursuant to the above objections, Responding Party cannot and will not respond.

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REQUEST FOR PRODUCTION NO. 6:

All training materials, internal memoranda, staff-meeting agendas, staff-meeting minutes, and email communications provided to or among HOPE clinicians and supervisors during the RELEVANT PERIOD REFERRING TO treatment completion, discharge planning, or homework recordkeeping.

RESPONSE TO REQUEST FOR PRODUCTION NO. 6:

Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrase "treatment completion." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 7:

All DOCUMENTS reflecting HOPE's policy or practice regarding the right of a HOPE participant to obtain copies of his or her own clinical records directly from HOPE, including any policy requiring requests to be routed through a CDCR/DAPO parole agent. (This request is propounded in light of the position taken by HOPE staff member Janelle Aldana on May 4, 2026, that PLAINTIFF must request his own records through Parole Agent Long Moua rather than directly from HOPE.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 7:

Objection. This request is vague, unintelligible, and assumes as facts not in evidence that HOPE retains parolee participants in treatment for the entire duration of parole, or under which no parolee may be deemed to have completed treatment prior to parole discharge. This request is also objected to on the grounds that it seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 8:

PLAINTIFF's complete clinical file, including but not limited to: intake forms; treatment contracts; orientation materials; written individualized treatment plans ("ITPs"); phase-progression notes; progress notes; attendance records; group-session notes; individual-session notes; assessments; risk-instrument scoring sheets; and discharge recommendations.

RESPONSE TO REQUEST FOR PRODUCTION NO. 8:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase “complete clinical file” and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 9:

All Treatment Completion Plans, in any draft or final form, prepared by any HOPE clinician concerning PLAINTIFF, including without limitation the Treatment Completion Plan dated October 18, 2023, authored by HOPE clinician identified as "Bernadette" and confirmed to exist in HOPE's records by Janelle Aldana on May 4, 2026.

RESPONSE TO REQUEST FOR PRODUCTION NO. 9:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "Treatment Completion Plans" and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 10:

All Mason-protocol progress reviews, structured progress assessments, validated risk-or-progress instruments, and comparable scoring sheets administered to PLAINTIFF during the RELEVANT PERIOD, in all draft and final forms.

RESPONSE TO REQUEST FOR PRODUCTION NO. 10:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "validated risk or progress instruments" and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as

follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 11:

All homework packets, assignments, and other written work submitted by PLAINTIFF to HOPE during the RELEVANT PERIOD that remain in HOPE's possession, custody, or control, in original or copy form.

RESPONSE TO REQUEST FOR PRODUCTION NO. 11:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "homework packets" and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 12:

All logs, ledgers, scan records, intake/receipt sheets, tracking databases, and audit records used by HOPE during the RELEVANT PERIOD to document the receipt, processing, storage, retrieval, and return of PLAINTIFF's homework submissions.

RESPONSE TO REQUEST FOR PRODUCTION NO. 12:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "tracking databases," unintelligible as phrased, and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 13:

All incident reports, internal emails, missing-record reports, reconstruction efforts, and DOCUMENTS REFERRING TO any lost, missing, misplaced, destroyed, or unaccounted-for homework packet of PLAINTIFF or of any other parolee participant at the STOCKTON FACILITY during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 13:

Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrase "reconstruction efforts," and "homework packet." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844; *Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 14:

All COMMUNICATIONS between or among HOPE clinicians, supervisors, or staff REFERRING TO PLAINTIFF's homework submissions, treatment progress, group participation, individual-session content, complaints, or compliance during the RELEVANT PERIOD.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 14:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "individual-session content," unintelligible as phrased, and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 15:

All COMMUNICATIONS between any HOPE employee and PLAINTIFF during the RELEVANT PERIOD, including but not limited to e-mails to or from any HOPE e-mail address (including those of Janelle Aldana, Shannon Smith, and Pamela Akins), in original electronic form with metadata.

RESPONSE TO REQUEST FOR PRODUCTION NO. 15:

Objection. This request is overbroad as to time, subject matter, and scope. Further objection is made that this request calls for expert IT opinion and is unduly burdensome and oppressive. Responding Party also objects to the extent that this request seeks information unrelated to the subject matter of Plaintiff's lawsuit. Further, this request fails to state with reasonable particularity the items being sought. Responding Party also objects to this request to the extent it seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party objects to this Request to the extent it demands the production of Electronically Stored Information (ESI) within an unreasonable timeframe. Given the volume of data, the necessity of identifying custodians, running search terms, and conducting a thorough privilege review, the demanded timeframe is inherently unreasonable, unduly burdensome, and oppressive. Responding Party further objects to

this Request as premature and unduly burdensome because the Propounding Party has failed to meaningfully meet and confer regarding an ESI protocol, including the identification of custodians, relevant date ranges, search terms, and a phased production schedule, as contemplated by the California Discovery Act and CRC 3.724.

Pursuant to the above objections Responding Party cannot and will not respond..

REQUEST FOR PRODUCTION NO. 16:

All FORM 3043 documents, including all drafts, final versions, supporting notes, and worksheets, prepared by, received by, or contributed to by HOPE or PALACIOS concerning PLAINTIFF during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 16:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "supporting notes," unintelligible as phrased, and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 17:

All FORM 1502-DR documents, including all drafts, final versions, narrative inputs, and supporting materials, on which HOPE or PALACIOS provided input or which HOPE or PALACIOS received concerning PLAINTIFF, including without limitation the November 14, 2025 FORM 1502-DR signed by Agent Long Moua and Unit Supervisor Gary Noguchi.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 17:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "supporting materials," unintelligible as phrased, and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 18:

All COMMUNICATIONS between any HOPE employee (including PALACIOS) and any CDCR/DAPO parole agent, supervisor, or other employee during the RELEVANT PERIOD REFERRING TO PLAINTIFF, including without limitation Agents Magana, Arestad, Acierto, Urrea, Long Moua, Chow, Noguchi, and Derrick. This request includes e-mails, text messages, voicemails, written notes of phone calls, and meeting summaries.

RESPONSE TO REQUEST FOR PRODUCTION NO. 18:

Objection. This request is overbroad as to time, subject matter, and scope. Further objection is made that this request calls for expert IT opinion and is unduly burdensome and oppressive. Responding Party also objects to the extent that this request seeks information unrelated to the subject matter of Plaintiff's lawsuit. Further, this request fails to state with reasonable particularity the items being sought. Responding Party also objects to this request to the extent it seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party objects to this Request to the extent it demands the production of Electronically Stored Information (ESI) within

an unreasonable timeframe. Given the volume of data, the necessity of identifying custodians, running search terms, and conducting a thorough privilege review, the demanded timeframe is inherently unreasonable, unduly burdensome, and oppressive. Responding Party further objects to this Request as premature and unduly burdensome because the Propounding Party has failed to meaningfully meet and confer regarding an ESI protocol, including the identification of custodians, relevant date ranges, search terms, and a phased production schedule, as contemplated by the California Discovery Act and CRC 3.724.

Pursuant to the above objections Responding Party cannot and will not respond.

REQUEST FOR PRODUCTION NO. 19:

All notes, agendas, minutes, transcripts, attendance lists, and follow-up summaries for every CTM concerning PLAINTIFF during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 19:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "notes," and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 20:

All audio recordings, video recordings, transcripts, drafts, and notes for the August 2025 CTM held at the CDCR parole office in Stockton concerning PLAINTIFF (referenced in FAC ¶ 24), and any preparatory or follow-up DOCUMENTS RELATING TO that CTM.

RESPONSE TO REQUEST FOR PRODUCTION NO. 20:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "notes," and overbroad as to time and scope. Further objection is made that this discovery

request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 21:

All training materials, internal memoranda, and staff communications during the RELEVANT PERIOD REFERRING TO the preparation of FORM 3043 or FORM 1502-DR submissions, including any guidance or instruction on characterizing parolee progress, homework completion, or treatment-completion status.

RESPONSE TO REQUEST FOR PRODUCTION NO. 21:

Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrases "internal memoranda," and treatment-completion status." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

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REQUEST FOR PRODUCTION NO. 22:

All DOCUMENTS REFERRING TO the email forwarded by Janelle Aldana on or about May 4, 2026 to her manager(s) at HOPE following her telephone call with PLAINTIFF that day, and any internal HOPE communications generated in response to or following that forwarded email.

RESPONSE TO REQUEST FOR PRODUCTION NO. 22:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "internal HOPE communications," unintelligible as phrased, and overbroad as to time and scope. Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party and employee's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 23:

All contracts, master service agreements, statements of work, scopes of work, exhibits, addenda, amendments, renewals, memoranda of understanding, fee schedules, and rate sheets between HOPE and CDCR (including DAPO) for SOMP services during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 23:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to "contracts" and "master service agreements," and overbroad as to time and scope. Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v.*

Superior Court (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including addenda, amendments, renewals, memoranda of understanding, fee schedules, and rate sheets constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

REQUEST FOR PRODUCTION NO. 24:

All DOCUMENTS reflecting the basis on which HOPE bills CDCR/DAPO for SOMP services, including per-session, per-month, per-parolee, per-CTM, intake, individual-session, group-session, or aftercare rates and any volume guarantees or performance metrics.

RESPONSE TO REQUEST FOR PRODUCTION NO. 24:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrases "aftercare rates" and "volume guarantees," and overbroad as to time and scope. Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including bills, rate, guarantees and performance metrics constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

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REQUEST FOR PRODUCTION NO. 25:

All invoices, billing statements, payment records, ledgers, and accounts-receivable records reflecting amounts billed to and paid by CDCR/DAPO for services attributable to PLAINTIFF during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 25:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "ledgers" and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including billing statements, payment records, ledgers, and accounts-receivable records constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

REQUEST FOR PRODUCTION NO. 26:

DOCUMENTS sufficient to show, for each calendar year during the RELEVANT PERIOD: (a) the number of parolee participants enrolled at the STOCKTON FACILITY; (b) the total revenue HOPE received from CDCR/DAPO for those participants; (c) the average annual revenue per participant; and (d) the number of those participants who received a treatment-completion determination, broken out between pre-discharge and post-discharge completions.

RESPONSE TO REQUEST FOR PRODUCTION NO. 26:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "treatment completion," "pre-discharge," and "post-discharge," and overbroad as to time and

scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including total revenue and average revenue constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court."

REQUEST FOR PRODUCTION NO. 27:

All compensation plans, bonus plans, profit-sharing arrangements, performance-evaluation criteria, and incentive arrangements applicable during the RELEVANT PERIOD to PALACIOS or to any other Site Director, Clinical Director, or supervisory clinician at the STOCKTON FACILITY, including any plan or arrangement tied in whole or in part to client census, retention, sessions delivered, or revenue/profit generated.

RESPONSE TO REQUEST FOR PRODUCTION NO. 27:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "arrangements," and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and

oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including compensation plans, bonus plans, profit-sharing arrangements, performance-evaluation criteria, and incentive arrangements constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

REQUEST FOR PRODUCTION NO. 28:

All payroll records, W-2s, 1099s, year-end compensation summaries, and bonus calculations for PALACIOS during the RELEVANT PERIOD, sufficient to show all compensation paid by HOPE in any year.

RESPONSE TO REQUEST FOR PRODUCTION NO. 28:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "arrangements," and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including payroll records, W-2s, 1099s, year-end compensation summaries, and bonus calculations constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

REQUEST FOR PRODUCTION NO. 29:

All site-level revenue reports, budget documents, forecasts, financial statements, financial dashboards, and management reports for the STOCKTON FACILITY during the RELEVANT

PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 29:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "ledgers" and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including billing statements, payment records, ledgers, and accounts-receivable records constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court.

REQUEST FOR PRODUCTION NO. 30:

All DOCUMENTS REFERRING TO DWYER, including without limitation the March 20, 2023 order, hearing transcripts, briefing, internal HOPE memoranda, executive emails, board materials, and clinical-staff training materials concerning DWYER.

RESPONSE TO REQUEST FOR PRODUCTION NO. 30:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term undefined phrase "internal HOPE memoranda" and "board materials," and overbroad as to time and scope. Further objection is made that this request assumes facts not in evidence, calls for speculation, and is not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California

Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 31:

All DOCUMENTS reflecting the date and manner in which HOPE and PALACIOS first became aware of DWYER, including but not limited to the testimony of HOPE's Executive Director of Clinical Training Dr. Cristina Loree, in DWYER on or before March 20, 2023.

RESPONSE TO REQUEST FOR PRODUCTION NO. 31:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term undefined phrase "first became aware" and overbroad as to time and scope. Further objection is made that this request assumes facts not in evidence, calls for speculation, and is not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the aforementioned objections, Responding Party responds as

follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 32:

All DOCUMENTS reflecting actions HOPE considered, proposed, or implemented after DWYER (March 20, 2023) to review, modify, or discontinue the BLANKET RETENTION POLICY.

RESPONSE TO REQUEST FOR PRODUCTION NO. 32:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "reflecting actions" and overbroad as to time and scope. Further objection is made that this request assumes facts not in evidence, calls for speculation, and is not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 33:

All DOCUMENTS REFERRING TO 15 C.C.R. section 3574 and the April 17, 2025, amendments thereto, including but not limited to internal memoranda, board materials, executive, emails, compliance analyses, training materials, and policy revisions.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 33:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "internal memoranda" and "board materials," and overbroad as to time and scope. Further objection is made that this request assumes facts not in evidence, calls for speculation, and is not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 34:

All DOCUMENTS reflecting actions HOPE considered, proposed, or implemented after April 17, 2025 to bring HOPE's policies into compliance with the 15 C.C.R. section 3574(f)(1) requirement that "treatment completion and parole discharge are legally separate decisions."

RESPONSE TO REQUEST FOR PRODUCTION NO. 34:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "reflecting actions," and overbroad as to time and scope. Further objection is made that this request assumes facts not in evidence, calls for speculation, and is not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and a third party's

right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. To the extent that any requested documents are already in the possession of Requesting Party, or publicly accessible through other means, Responding Party also objects to this request on that basis.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 35:

All e-mails, text messages, internal HOPE communications, and notes prepared between July 1, 2025 and September 30, 2025 REFERRING TO PLAINTIFF, his complaints, his alleged influence on other participants, or preparation for the August 2025 CTM.

RESPONSE TO REQUEST FOR PRODUCTION NO. 35:

Objection. This request vague and ambiguous as to the phrase "notes prepared", unintelligible as phrased, and overbroad as to time, subject matter, and scope. Further objection is made that this request calls for expert IT opinion and is unduly burdensome and oppressive. Responding Party also objects to the extent that this request seeks information unrelated to the subject matter of Plaintiff's lawsuit. Further, this request fails to state with reasonable particularity the items being sought. Responding Party also objects to this request to the extent it seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030. Responding Party objects to this Request to the extent it demands the production of Electronically Stored Information (ESI) within an unreasonable timeframe. Given the volume of data, the necessity of identifying custodians, running search terms, and conducting a thorough privilege review, the demanded timeframe is inherently unreasonable, unduly burdensome, and oppressive. Responding Party further objects to this Request as premature and unduly burdensome because the Propounding Party has failed to

meaningfully meet and confer regarding an ESI protocol, including the identification of custodians, relevant date ranges, search terms, and a phased production schedule, as contemplated by the California Discovery Act and CRC 3.724.

Pursuant to the above objections, Responding Party cannot and will not respond.

REQUEST FOR PRODUCTION NO. 36:

All DOCUMENTS REFERRING TO any complaint, grievance, objection, request, or other expression of concern made by PLAINTIFF to HOPE or PALACIOS at any time during the RELEVANT PERIOD regarding HOPE's retention policy, lost or mishandled homework, clinician turnover, phase progression, treatment completion, or any other aspect of HOPE's program, and any HOPE response thereto.

RESPONSE TO REQUEST FOR PRODUCTION NO. 36:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "expression of concern," unintelligible as phrased, and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. . This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 37:

All disciplinary records, behavioral notes, group-session notes, individual-session notes, and incident reports REFERRING TO any alleged disruptive, ringleading, abhorrent, or disrespectful conduct by PLAINTIFF in HOPE group or individual sessions during the RELEVANT PERIOD.

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RESPONSE TO REQUEST FOR PRODUCTION NO. 37:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "ringleading" and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. . This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 38:

All audio recordings, video recordings, transcripts, and notes of any HOPE group session at the STOCKTON FACILITY during the RELEVANT PERIOD in which PLAINTIFF participated, including the August 2025 group session in which PALACIOS stated, in substance, that HOPE "routinely loses client homework packets."

RESPONSE TO REQUEST FOR PRODUCTION NO. 38:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "notes," and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. . This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 39:

Personnel files, employment agreements, job descriptions, performance evaluations, and licensure records for PALACIOS, Pamela Akins, Dr. Cristina Loree, the clinician identified as "Bernadette" in HOPE's records concerning PLAINTIFF, Janelle Aldana, and Shannon Smith during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 39:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "licensure records," and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including employment agreements, and performance evaluations constitute confidential business information or trade secrets under CCP § 2019.210 and CCP § 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court."

Pursuant to the above objections, Responding Party cannot and will not respond.

REQUEST FOR PRODUCTION NO. 40:

DOCUMENTS sufficient to identify every clinician, supervisor, and staff member assigned to PLAINTIFF's care during the RELEVANT PERIOD, the dates of each such assignment, and the reason for each transfer or reassignment of PLAINTIFF among clinicians.

RESPONSE TO REQUEST FOR PRODUCTION NO. 40:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "transfer or reassignment," and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. . This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 41:

All documentation of clinician turnover, reassignment, departure, or hiring affecting the STOCKTON FACILITY during the RELEVANT PERIOD.

RESPONSE TO REQUEST FOR PRODUCTION NO. 41:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the term "clinician turnover," and overbroad as to time and scope. Respondent further objects that this discovery request seeks documents and/or items protected from disclosure by the attorney-client and/or attorney work product privileges in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party. Further objection is made that the requested information, including turnover, reassignment, departure, or hiring constitute confidential business information or trade secrets under CCP § 2019.210 and CCP

§ 2019.215. Disclosure would cause substantial harm to Responding Party's business or personal interests. As such, these items should be excluded from discovery unless otherwise ordered by the Court."

Pursuant to the above objections, Responding Party cannot and will not respond.

REQUEST FOR PRODUCTION NO. 42:

All DOCUMENTS in YOUR possession, custody, or control REFERRING TO PLAINTIFF's status as a Class A Commercial Driver's License ("CDL") holder, his commercial-trucking employment, his employer relationships (including United Road, Keurig Dr Pepper, Tiger Lines LLC, US-1 Shorthaul, Lazer Spot, Inc., and Centerline Drivers), his missed sessions, his schedule conflicts, or his requests for accommodation.

RESPONSE TO REQUEST FOR PRODUCTION NO. 42:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "employer relationships," and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Following a diligent search and reasonable inquiry Responding Party is unable to comply because the documents requested never existed.

REQUEST FOR PRODUCTION NO. 43:

All HOPE attendance records for PLAINTIFF during the RELEVANT PERIOD, including dates of attendance, dates of absence, and the recorded reason for each absence.

RESPONSE TO REQUEST FOR PRODUCTION NO. 43:

Objection. This request is objected to on the grounds that it is vague, ambiguous as to the phrase "recorded reason," and overbroad as to time and scope. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030. This request is

also objected to on the grounds that it seeks information that is irrelevant to the claims at issue in this case, is burdensome and oppressive, and places an undue burden and expense on Responding Party.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 44:

All DOCUMENTS REFERRING TO any HOPE policy, practice, or procedure for accommodating parolee participants whose employment, including CDL employment, conflicts with HOPE's mandatory schedule, including any provision for telehealth, evening sessions, weekend sessions, or alternative scheduling.

RESPONSE TO REQUEST FOR PRODUCTION NO. 44:

Objection. This request is vague and ambiguous as to "mandatory schedule." This request is also objected to on the grounds that it seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Further objection is made that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

REQUEST FOR PRODUCTION NO. 45:

All COMMUNICATIONS between HOPE and any CDCR/DAPO parole agent during the RELEVANT PERIOD REFERRING TO PLAINTIFF's missed sessions, his employment, or any threatened or actual parole-violation consequence arising from missed HOPE sessions.

RESPONSE TO REQUEST FOR PRODUCTION NO. 45:

Objection. This request is vague and ambiguous as to the phrase "any threatened or actual parole-violation consequence," and unintelligible as phrased. This request is also objected to on the grounds that it seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Further objection is made that this discovery request seeks the

production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030, and an employee and third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844.

Subject to and without waiving the aforementioned objections, Responding Party responds as follows: Responding Party will produce non-privileged and relevant responsive documents in its possession, custody, or control upon the entry of a protective order.

Dated: June 15, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

VERIFICATION

Newanforbi v. Palacios

I, Carric Shinskc, statc and dcclarc:

I am the Executive Director, Clinical Operations of HOPE Program, A Licensed Clinical Social Worker Professional Corporation, a Defendant in the above-entitled matter, and I am authorized to execute this Verification on its behalf. I have read the foregoing Responses to Plaintiff's First Set of Requests for Production and know the contents thereof. I am informed and believe, and on that ground, I allege the matters stated therein are true.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed at San Diego, California, on June 12, 2026.

Carrie Shinske (Jun 12, 2026 18:33:55 PDT)

CARRIE SHINSKE

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANT HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

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☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 15, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**